

DESIGNIT MEDIA (PVT) LTD t/a REAL TIME CAPITAL

4th Floor Batanai Gardens Suite 422

Number 59 Jason Moyo Avenue, Harare

Harare

Contacts: Tel: 0242-792626/7

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SPECIAL CONTRACT: PAWN TICKET AND DISCLOSURE

FOR THE VAUE RECEIVED, I, the undersigned (The Pawner),

Name.....**ID No**.....

Address.....

.....**Contact No**.....

Hereby promise to pay to the order of **Designit Media P/Ltd t/a REAL TIME CAPITAL**(The Pawn Broker), in accordance with the terms and conditions set forth below, the sum of

USD.....**In words**.....

.....

ASSET PLEDGED: MOTOR VEHICLE

MAKE :

MODEL :

REGISTRATION NO. :

CC SERIAL NO. :

ENGINE NO. :

CHASSIS NO

:

SPECIAL TERMS AND CONDITIONS

1. Due Date

- 1.1 The amount is due and payable on or before.....
- 1.2 Pawned items to be collected within 24 hours after payment
- 1.3 A penalty of 10% shall be charged on **total amount due** if the payment is not effected on due date but paid within 7 days grace period

2. Charges – 25% per every 30 days

These charges are included in the sum to be paid;

- 2.1 The Pawn Broker charges interest at the rate of 4% per every 30 days and any period less than 15 days will be charged at 2%.
- 2.2 Storage charges are 21% of the sum received.

3 Recourse

- 3.1 After the redemption date, unredeemed pledges will be sold but may be redeemed anytime before sale. The Pawnbroker need not make any demands, i.e. ***dies interpellat pro homine*** and the Pawner is in ***mora ex re*** if he/she fails to pay on the agreed date.
- 3.2 This agreement is ***parate executie***, meaning sale without Court order is permissible.
- 3.3 After the Redemption date, the Pawner authorizes the Pawn Broker to sell or change ownership of the pledge using this Agreement and the signed Change of Ownership Affidavit to any willing buyer without seeking further consent and authorization.
- 3.4 All pledges are left at owners' risk caused by natural disasters and the Pawn broker will not compensate for pledges which cease functioning whilst in his custody.
- 3.5 The Pawner accepts that no failure on part of the Pawn Broker to immediately enforce payment or other rights or any relaxation or indulgence will constitute a waiver or alteration of his rights or a bar to enforcing them subsequently.
- 3.6 The Pawner grants the Pawn broker and its officials the power of substitution, to be the true and lawful attorney in his/her name, place and stead to appear before any Government authorities and then act and deed to make transfer to the purchaser.

3.7 This Agreement and the annexures can only be amended in writing and signed by both parties.

4 Payments

4.1 All payments will be made in **CASH ONLY and in the Currency disbursed** in this agreement which is **UNITED STATES DOLLARS**.

4.2 **No other currency, including but not limited to, Bond notes, South African Rand, Yuan, Euro, OR any other forms of payments including but not limited to, Zimbabwean Gold (ZIG), Zimbabwe Instant Payment Transaction (ZIPIT), Ecocash, Telecash, One Wallet, Net cash OR any other currency or form of payment that may become legal tender in Zimbabwe shall be accepted until this contract is fully extinguished.**

5 Indemnity

5.1 The Pawner declares that he/she is the rightful owner or has been authorized or employed by the owner thereof to pawn the pledge.

5.2 The Pawner does hereby undertake and engage not to make any claims against the Pawn Broker and its Officials and indemnify them from any claims or demands from third parties for or on account of the pledged asset.

5.3 The Pawner agrees that any sale of the pledge in this agreement after the due date has his/her authority and consent hence such sale will not constitute any criminal offence and cannot be treated as theft of trust property.

6 Disputes

Any disputes that may arise between the parties shall have the jurisdiction of the Magistrates' Court, Harare.

Signed.....Date.....
Pawner

Signed.....Date.....
Pawner Broker

